Claim No. CL-2025-000287

SEALED / AMENDED

IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

COMMERCIAL COURT (KBD)

B E T W E E N:

PENROSE ROBOTICS LIMITED

Claimant

- and -

CALDERVALE DISTRIBUTION LIMITED

Defendant

AMENDED PARTICULARS OF CLAIM

The parties

1. The Claimant ("Penrose") is a company incorporated in England and Wales (company number 09681142) which designs, manufactures and integrates autonomous mobile robots and warehouse-orchestration software for goods-to-person fulfilment.

2. The Defendant ("Caldervale") is a company incorporated in England and Wales (company number 06122874) which operates third-party logistics and e-commerce fulfilment services, including from its distribution centre at Royal Oak Way, Daventry NN11 8QL (the "DC").

The Agreement

3. By a written System Supply, Integration and Maintenance Agreement dated 22 January 2024 (the "Agreement"), Penrose agreed to supply, install, integrate, commission and maintain an automated goods-to-person fulfilment system at the DC, comprising 84 Penrose A-Series autonomous mobile robots, charging and docking infrastructure, and the Penrose OrchestraOS software (the "System").

4. The total contract price was £4,250,000 (exclusive of VAT), payable against the milestones in Schedule 3. Caldervale has paid Milestones 1 to 3, totalling £2,650,000. Milestone 4 (System Acceptance, £1,275,000) and the final integration tranche (£162,500) remain unpaid – a total of £1,437,500 (the "Outstanding Sums").

The acceptance criteria and the Defendant's dependencies

5. By clause 8 and Schedule 4, System Acceptance was to be determined over a 20-working-day Acceptance Period against (a) a sustained average pick throughput of not less than 650 units per hour per zone across six pick zones; and (b) fleet availability of not less than 98%.

6. By clause 7 and Schedule 5, those criteria were conditional upon Caldervale (a) providing an accurate SKU master and slotting dataset; (b) providing a compliant WMS host environment (sub-5ms host latency); and (c) maintaining a stable inbound order profile during the Acceptance Period (the "Dependencies"). Further or alternatively it was an implied term that Caldervale would co-operate and not prevent Penrose from achieving the criteria.

Caldervale's breaches

7. In breach of the Dependencies, Caldervale (a) supplied on 18 September 2024 an SKU master with errors affecting ~22% of active SKUs; (b) hosted OrchestraOS on a non-compliant shared environment with ~31ms host latency; and (c) launched an unscheduled promotional campaign on 21 October 2024 outside the agreed test profile. These matters caused the throughput and availability shortfall now relied upon by Caldervale.

8. Penrose invoiced Milestone 4 (£1,275,000) on 31 October 2024 and the integration tranche (£162,500) on 15 November 2024. Caldervale wrongfully failed to pay, in breach of clause 12.

9. By letter dated 7 February 2025 Caldervale purported to terminate the Agreement and reject the System. That purported termination was wrongful and repudiatory; Penrose accepted the repudiation by letter dated 24 February 2025.

Loss and damage

10. Penrose has suffered loss particularised in the Schedule of Loss, comprising: (a) the Outstanding Sums of £1,437,500; (b) loss of maintenance revenue over the unexpired term, £427,000; and (c) wasted and demobilisation costs of £146,000. The total claim is £2,010,500, such sums being claimed without prejudice to Penrose's primary case that no valid acceptance test was carried out.

11. Penrose claims interest on the Outstanding Sums under clause 12.4 (4% over Bank of England base rate), alternatively under section 35A of the Senior Courts Act 1981.

Prayer

AND the Claimant claims:

(a) the sum of £1,437,500;

(b) damages of £573,000, alternatively damages to be assessed;

(c) interest under clause 12.4, alternatively under section 35A of the Senior Courts Act 1981;

(d) costs; and

(e) such further or other relief as the Court thinks fit.

STATEMENT OF TRUTH

The Claimant believes that the facts stated in these Amended Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: Dr Marcus Penrose, Chief Executive Officer, Penrose Robotics Limited
Dated: 12 May 2025

HARRIET STANFORD
Eldon Chambers, Temple, London EC4Y 7BD

Issued by the Court and sealed: 12 May 2025. Whitfield Carter LLP, solicitors for the Claimant.